

HOUSE No. 2497

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to medical health and fitness facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/17/2025</i>

HOUSE No. 2497

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 2497) of Paul McMurtry relative to medical health and fitness facilities. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2237 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to medical health and fitness facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws is hereby amended by inserting after section 237 the
2 following section:

3 Section 238. (A) As used in this section the following words shall have the following
4 meaning unless the context clearly requires otherwise – “Medical Health and Fitness Facilities”
5 (“MHFF”) are defined as any wellness facility that has created protocols and operating
6 procedures which all such facilities will need to achieve and maintain in order to be recognized
7 as such a facility by the Department.

8 (B) Medical Health and Fitness Facilities as recognized by the Department must adhere to
9 and achieve the following safety standards and facility specifications and requirements:

1. Size: MHFF facilities must exhibit the ability to physically accommodate the rules and regulations set forth by the Massachusetts Safety and Standards Checklist with regard to:

- a. Social distancing
- b. 6ft and 14ft separation requirements
- c. Directional pathways
- d. Adhere to limitations on maximum facility occupancy at any given time

2. Medical Application Standards: MHFF facilities must maintain, adhere to and provide for all of the following medical safeguards and medical service programs:

- a. Written policies and procedures regarding member/guest safety
- b. Emergency response procedures
- c. Individualized health assessments
- d. Disease management and prevention programs
- e. Lifestyle change/health-risk reduction programs
- f. Physical therapy, post-operative/injury
- g. Physical therapy continued care program
- h. Implementation and maintenance of a Medical Advisory Board

i. Medical Advisory Board (“MAB”) is group of healthcare professionals headed by a Medical Director that meet on at least a quarterly basis for the purpose of reviewing and providing professional oversight for all aforementioned medical applications: The members of the MAB should be recognized experts in their field. Their combined experience and valued insights should direct the facility in all efforts to enhance all existing wellness programs as well as maintain and improve the safety protocols for current participants. The MAB also plays a large part in determining what new services and or lifestyle improvement programs may be needed or valuable to neighboring communities and the client/patient community.

i. Medical Director

i. The Medical Director is a licensed medical physician who sits on the Medical Advisory Board and oversees, directs and reviews all communications with the MAB.

ii. The Medical Director is responsible for the safe and appropriate application of all medical programs within the facility.

3. Staffing Requirements and Qualifications

a. All MHFF facilities are required to employ personnel in the following full-time positions with qualifications listed.

b. Fitness Director: must have a minimum of an Exercise Physiology or Health Science Degree or the equivalent.

c. Certified Pool Operator: Facilities with pools and/or hot tubs and Jacuzzi must have a certified pool operator.

d. Operations Manager: Must have a BS in Facility and or Operations Management with 5+ years' experience.

e. Fitness Manager on Duty ("FMOD"): all facilities must employ a fitness manger on duty at all times of operation.

f. Medical Director: All facilities must have a licensed medical physician to oversee the MAB. The Medical Director will be responsible for overseeing the medical and behavioral change programs within each facility. The Medical Director will work with the MAB and facility management in order to coordinate various interdisciplinary teams to execute the facility's medical and wellness policies, systems and agenda.

4. Cleaning and Hygiene Procedures: MHFF facilities must maintain and enforce the following cleaning protocols in accordance with the Massachusetts Safety and Standards Checklist

a. Provide ample and sufficient sanitation wipes easily accessed for members and staff to clean equipment before and after each individual use.

b. Provide ample and sufficient hand sanitation stations easily accessed for members and staff to consistently sanitize their hands.

c. Staff is required to spray down equipment with EPA approved disinfectant at scheduled times throughout the day to maintain optimal safety and cleanliness. Staff must log and track cleaning times.

d. Staff will disinfect high touch, high use areas consistently throughout the day, with EPA approved N list cleaning product and log and track times.

e. Increase cleaning staff to maintain and enable consistent, thorough and continuous facility sanitization.

5. Air Quality and Control

a. MHFF facilities will be required to purchase, install and continuously operate non-thermal plasma self-contained electronic air and surface decontamination unit(s)

b. Said unit(s) shall have the capacity to eradicate bacteria, viruses, mold and odor at an average reduction rate of 90% in the air and 95% on surfaces in large occupied spaces by creating oxidized molecules from ambient air using non-thermal plasma technology

c. Said unit(s) will not use chemicals in any aspect of operation and will comply with USDA National Organic Standards (7 CFR Part 205)

d. Said unit(s) shall be powered by standard 120 volt outlet

e. Said unit(s) shall have no effect on temperature or humidity of the facility

f. Said unit(s) shall offer continuous 24 hour treatment

g. Said unit(s) can be calibrated for different operations cycles

h. Said unit(s) shall be compliant with OSHA safety and air quality regulations.

6. Safety Standards and Required Protocols: MHFF facilities will be required to implement and maintain the following protocols.

a. Temperature must be taken for any person entering the facility. Any person with a measured temperature of 100 degrees Fahrenheit or higher shall not be allowed to enter the facility.

b. Any person entering the facility must be checked in for tracing purposes. (Club must have a computerized check-in system.)

c. Facilities must maintain an updated member contact process e-mail or cell phone

d. Signs must be posted conspicuously throughout required spaces communicating safety regulations and requirements for said spaces.

e. All new members are required to fill out a detailed health check form

f. Automatic External Defibrillators (AEDs) are required; one unit for every 75,000 sq. ft. to ensure prompt and timely application.

g. All staff must be trained in CPR and AED use

h. All staff must have basic lifesaving skill certification

i. Facility must have and train all employees in an emergency action plan for the following:

i. Fire

ii. Health emergency

iii. Active shooter

iv. Positive COVID test

104 v. Aquatic emergency

105 j. Facility must track and document training times and trained personnel